

Smt. Chandrawati v. Dakshinanchal Electricity Supply Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 30 March 2010 · WRIT - C No. 15771 of 2010 · **Writ disposed; representation on 1.10.2009 bill to be decided under Supply Code 2005.**

HEADNOTE

On a writ limited to liberty to represent a post-disconnection bill, the Division Bench disposed of the petition by permitting a representation to respondent no. 3 to be considered in accordance with the U.P. Electricity Supply Code, 2005, without deciding the bill or restoration on merits.

FACTUAL SUMMARY

The petitioner's electricity connection was temporarily disconnected on 27 March 2006 on the charge that she had not deposited the remaining amount of Rs 7,088. She deposited Rs 4,000 on 31 March 2006, but supply was not restored. She later received a bill dated 1 October 2009. She contended that once the connection stood disconnected, there was no occasion to send bills regularly. The only prayer pressed was liberty to represent that bill before the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

representation on post-disconnection bill

HOLDING

The writ was disposed of with liberty to the petitioner to submit a representation to respondent no. 3 on the bill dated 1 October 2009, to be considered and decided in accordance with the U.P. Electricity Supply Code, 2005, expeditiously and preferably within three months of production of a certified copy. The Court did not decide the bill or restoration. ¶ 1

FLAG order invokes Supply Code 2005 without naming a clause

PRINCIPLE TAGS

relegate-to-statutory-remedy On a writ limited to liberty to represent a post-disconnection bill, the Division Bench disposed of the petition by permitting a representation to respondent no. 3 to be considered in accordance with the U.P. Electricity Supply Code, 2005, without deciding the bill or restoration on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE BILL DATED 1.10.2009 AND RESTORATION OF SUPPLY AFTER THE 27.3.2006 TEMPORARY DISCONNECTION

Left to respondent no. 3 on representation; no merits finding. ¶ 1